

IN THE SUPERIOR COURT OF WASHINGTON FOR SNOHOMISH COUNTY

IN RE THE ADOPTION OF

TIMOTHY E. BENNETT II

(DOB: 01/11/2007)

NO.

AGREEMENT AND ORDER
FOR COMMUNICATION AND
CONTACT

I. DISCLOSURE AND LIMITATIONS

The adoptive parents and birth parent(s) may enter into an agreement regarding communication and/or contact between the birth parent(s) and the child adoptee after the adoption of the child. The following information should be considered by all parties before entering into such an agreement:

1.1 Court Authorization. This agreement regarding communication with or contact between the adoptive child, the adoptive parents and the birth parents(s) is not legally enforceable unless the terms of the agreement are set forth in a written court order signed by a judge.

1.2 Agreement of All Parties. The judge will not sign an order approving the agreement unless the terms are approved in writing by the prospective adoptive parents and any birth parents whose parental rights have not been previously terminated.

1.3 Approval by Adoptive Child's Representative. If the child is represented by an attorney, or if a guardian ad litem (GAL) is serving on behalf of the child in this proceeding or in any other child custody proceeding, the terms of this agreement also must be approved in writing by the child's attorney or GAL.

COMMUNICATION AGREEMENT- - 1

COPY

LAW OFFICES OF
MARK M. DEMARAY, INC. P.S.
145 THIRD AVENUE SOUTH, SUITE 201
EDMONDS, WASHINGTON 98020
(425) 771-6453 • (425) 412-3873 fax

1.4 Right to Consult Attorney. The parties, including the prospective adoptive parents, have the right to consult with an attorney regarding the proposed terms of the agreement before they sign it, and before it is approved and signed by a judge.

1.5 Disclosure of Identity of Parties. This agreement need not disclose the full name or identity of the parties to be legally enforceable.

1.6 Best Interest of Child. The judge will not approve this agreement unless it is found that the communication or contact between the child adoptee, the adoptive parents, and the birth parent(s) is agreed upon and is in the child adoptee's best interest.

1.7 Adoption is Final. Any party's failure to comply with the terms of the agreement regarding communication or contact shall not be grounds for setting aside an adoption decree or for revocation of a written consent to an adoption after it has been approved by the judge.

1.8 Enforcement of Agreement. The parties may enforce the agreement by starting a civil action in court. The party who prevails in such an action may be awarded a reasonable amount in attorney's fees.

1.9 Non-Modification of Agreement. This agreement shall not be modified after the judge has approved it, unless the judge finds that the modification is necessary to serve the child's best interests and the adoptive parents and birth parent(s) agree to the modification, or the court decides that exceptional circumstances exist which justify the modification.

II. AGREEMENT

We agree to the following plan for communication between the parties to this adoption proceeding:

2.1 Communication During Child's Minority. Adoptive parents agree to provide pictures and progress reports regarding the child's progress and well being to the birth father at his request, up to four (4) times each year until the child reaches eighteen (18) years of age. The parties agree that the pictures and updates sent pursuant to this agreement are only for the use and benefit of the signers of this agreement, their immediate families and friends. That information and those pictures are not for public dissemination or publication on public internet websites, newspapers, or other forms of mass communication. If any such information or pictures provided pursuant to this agreement are publically disseminated or

1 published on public internet websites, newspapers or other forms of mass communication,
2 the adoptive parents may, at their option, discontinue sending or transmitting any further
3 pictures, letters or other forms of communication provided for in this agreement.

4 2.2 Personal Visits. The parties further agree to arrange a personal visit between
5 adoptive parents, the birth father, and the child, at the birth father's request, up to eight (8)
6 times each year during the child's minority, at times approximately corresponding with early
7 February, the Spring Equinox, early May, the Summer Solstice, early August, the Autumn
8 Equinox, late October, and the Winter Solstice. In the event such a visit is requested, the
9 parties agree that notice of any such requested visit will be given to the adoptive parents at
10 least two weeks in advance. The parties further agree that the birth father may, at his option,
11 have a close family member or members accompany him to such visits. The exact date, time
12 and location of any such visit is to be determined by mutual agreement of all parties, and all
13 parties agree consider the child's then age, stage of development and understanding of
14 adoption issues and the child's interest and willingness to participate in such visit(s) when
15 scheduling such visits.

16 2.3 Notification in Case of Medical Need. The adoptive parents agree to notify
17 the birth father in the event the child develops a need for more family medical history, a
18 blood transfusion or other similar life-threatening medical need. The birth father also agrees
19 that it is acceptable for him to be contacted by the adoptive parents for such purposes. The
20 birth father also agrees to inform the adoptive parents of any developing medical conditions
21 or events relating to him and to his extended family that may be of importance to the child in
22 the future.

23 2.4 Delivery of Information. The exchange of pictures and information
24 contemplated above may be arranged directly between the adoptive parents and the birth
25 father and they agree to keep each other informed of a current address and/or other means of
26 contacting each other.

III. FINDINGS OF FACT

Based upon the foregoing Agreement, the court finds:

3.1 The agreement for communication/contact set forth above is in the best
interest of the child adoptee;

3.2 Each of the parents whose parental rights have not been terminated is a party to the agreement; and

3.3 Each of the parties signing below has been represented by an attorney or has had the opportunity to consult with a lawyer before signing and entering into the agreement.

IV. ORDER APPROVING AGREEMENT

4.1 IT IS HEREBY ORDERED that the agreement recited above in this document is approved and shall be an order of this court.

4.2 IT IS FURTHER ORDERED that each of the parties shall comply with the terms of the agreement; and that in the event of the failure of any person to comply appropriate enforcement proceedings may be brought; however, in no event shall the violation of the terms of the agreement constitute a basis for vacating or setting aside the adoption.

DONE IN OPEN COURT this ____ day of _____, 2013.

JUDGE/COURT COMMISSIONER

Approved by:

Copy Received:

Birth Father

Attorney

Adoptive Mother

Attorney

Adoptive Father

Attorney